

that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will continue the hearing for consideration of the motion and opposition on its merits. However, the Respondent is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court’s refusal to consider untimely filed papers.

III. CONCLUSION

The hearing on the Cost Petition is hereby CONTINUED. The parties and/or their counsel are ordered to appear, in person or remotely, to select a new hearing date. The Court will prepare the formal Order.

Calendar Line # 2

Case Name Declaration of Trust of Robert G. Cosgrove and Marian V. Cosgrove, dated August 17, 1987

Case No. 25PR201006

Motion to Approve Settlement Agreement

I. BACKGROUND

Petitioner Sandra Jean Baker (“Petitioner”) initiated this action by filing a petition concerning internal affairs of trusts and for transfer of real property. Petitioner asserts that she is the daughter of Robert Cosgrove and stepdaughter of Marian Cosgrove (collectively, “Settlors”), settlors of the Trust of Robert C. Cosgrove and Marian V. Cosgrove. Petitioner maintains that Settlers entered into an agreement with her in 1981 whereby she would be able to lease the real property located at 151 La Canada Court, Los Gatos, California (“Property”) for a term of 10 years for \$500 per month and then would be vested with a lease 99 years at a specified monthly rent. After 30 years, Petitioner would own the Property outright. In 1987, Settlers executed the Trust of Robert C. Cosgrove and Marian V. Cosgrove, the terms of which reflected the agreement with Petitioner. In 1988, Settlers executed wills identifying the Property as community property and each Settlor left one half of the Property to Petitioner. In 2022, Marian Cosgrove executed two versions of the Marian V. Cosgrove Revocable Trust UDT. The Property is purportedly an asset of the 2022 trusts. Robert Cosgrove is now deceased and Marian Cosgrove is incapacitated. Petitioner seeks, inter alia, an order that the trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022 transfer the Property to her and that the 2022 trusts are invalid.

Eve Monroe (“Respondent”), daughter of Marian Cosgrove, objected to the petition in her capacity as an individual beneficiary, as trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022, and as attorney-in-fact for Marian Cosgrove. Respondent also filed a supplemental objection, providing a copy of the power of attorney signed by Marian Cosgrove. Other interested parties were served but no other interested party filed an objection or appeared in the instant litigation.

The parties participated in mediation resulting in a settlement signed by Petitioner and Respondent, as an individual, as trustee, and as attorney-in-fact for Marian Cosgrove.

Currently before the Court is Petitioner’s motion to approve a settlement agreement she entered into with Respondent. The motion is unopposed.

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II. DISCUSSION

A. LEGAL BACKGROUND

“The trustee has the power to do any of the following: . . . Settle a claim by or against the trust by compromise, arbitration, or otherwise.” (Prob. Code, § 16242, subd. (b)). The probate court has authority to pass on the actions of the trustee pursuant to Probate Code section 17200. The court has discretion to approve a settlement agreement. (*Estate of Green* (1956) 145 Cal.App.2d 25, 28; *Breslin v. Breslin* (2021) 62 Cal.App.5th 801, 806 [probate court’s approval of settlement agreement is reviewed for abuse of discretion].) Interested parties who receive notice but do not participate in the litigation or mediation proceedings are bound by the settlement agreement. (*Breslin v. Breslin* (2021) 62 Cal.App.5th 801, 806).

B. THE SETTLEMENT AGREEMENT IS FAIR AND REASONABLE

Petitioner and Respondent participated in a full-day mediation session with the Honorable Judge Jacobs-May of JAMS, resulting in the proposed settlement agreement. The settlement agreement provides that Petitioner will receive the Property in exchange for a payment of \$312,345.00 to Respondent as trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022. (Declaration of Attorney Zell in Support of Motion to Approve Settlement by Trustee, Exh. A [settlement agreement], ¶ 4). The parties agree that current value of the Property of \$2,082,300.00. From the \$312,345.00 payment, Respondent will pay to the beneficiaries of Marian V. Cosgrove Revocable Trust UDT, August 11, 2022, Gwen Lumbré, Sue Cosgrove, and the estate of Robert Glen Cosgrove \$14,875.00 each and a second payment of \$52,057.50 each. (*Id.* at ¶ 5). The remainder of \$111,547.50 will be used for the care of Marian Cosgrove. (*Ibid.*). Moreover, the parties to the agreement release all claims arising out of the petition and objection filed in this case, whether known or unknown. (*Id.* at ¶¶ F, 7, 9).

The settlement represents a good outcome for the beneficiaries because it is possible that the outcome of the litigation may have been that Petitioner would receive the Property outright without payments to the beneficiaries. Pursuant to the settlement, the beneficiaries receive the payments discussed above.

III. CONCLUSION

The motion is GRANTED. The Court will prepare the Order.